

STATE OF MICHIGAN
IN THE THIRD JUDICIAL CIRCUIT FOR THE COUNTY OF WAYNE
FAMILY DIVISION, DOMESTIC RELATIONS

ADRIENNE MARJORIE ROCKENHAUS,
Plaintiff/CounterDefendant,

v.

CONRAD ALAN ROCKENHAUS,
Defendant/CounterPlaintiff.

Case No. **26-104594-DO**

Hon. **Nicole N. Goodson**

**DEFENDANT/COUNTER-PLAINTIFF'S RESPONSE IN OPPOSITION TO
PLAINTIFF/COUNTER-DEFENDANT'S MOTION TO SET ASIDE DEFAULT OF
COUNTERCLAIM**

NOW COMES Defendant/CounterPlaintiff Conrad Alan Rockenhaus, appearing pro se, and respectfully submits this Response in Opposition to Plaintiff/CounterDefendant's Motion to Set Aside Default of Counterclaim, filed May 13, 2026 (the "Motion to Set Aside"). In support of this Response, Defendant/CounterPlaintiff states as follows:

INTRODUCTION

This Court should deny the Motion to Set Aside for three independent reasons, each of which is independently dispositive.

First, the Motion to Set Aside contains no verification of any kind. The Motion bears the title "Verified Motion" but contains no oath, no affirmation, no sworn statement, and no signed declaration under penalty of perjury consistent with MCR 1.109(D)(3). The Motion is signed only by Lisa R. Baker as counsel under MCR 1.109(E), which is a procedurally distinct act from verification. Both MCR 3.210(B)(3) (the rule Plaintiff/CounterDefendant invokes) and MCR 2.603(D)(1) (the rule referenced in the supporting Brief) condition relief on a verified showing. Neither rule is satisfied.

Second, even if the Court were to overlook the verification defect, good cause has not been established. The Motion's own factual recitation defeats its central argument. The Motion concedes (at paragraph 4) that Plaintiff/CounterDefendant's Answer to Counterclaim was due on May 6, 2026. The Motion further asserts (at paragraphs 6, 14, and 15) that counsel's failure to file is excusable because counsel expected to be released from representation on May 12, 2026. The May 12 expected withdrawal date is six days after the May 6 deadline. Counsel's expectation that it would be withdrawn from representation after the Answer deadline elapsed cannot supply a reasonable excuse for failing to file before the deadline elapsed.

Third, the proposed Answer to Counterclaim that Plaintiff/CounterDefendant attached as the predicate for a meritorious defense does not state a meritorious defense as a matter of law. Every substantive paragraph of the proposed Answer uses the formulaic phrase "can neither admit nor deny for lack of sufficient information available, and leaves Defendant/CounterPlaintiff to his proofs," even with respect to allegations concerning Plaintiff/CounterDefendant's own conduct, her own statements to law enforcement, her own management of her own business, and her own communications. Such pleading is procedurally improper under MCR 2.111(C)(1) and operates as a functional admission under MCR 2.111(D). The proposed Answer cannot, as

a matter of law, constitute a meritorious defense. The same pattern appears in Plaintiff/CounterDefendant's contemporaneously-served Answers to Defendant's First Set of Requests for Admissions.

I. PROCEDURAL POSTURE

1. Plaintiff/CounterDefendant filed her Complaint for Divorce on April 9, 2026.
 2. Defendant/CounterPlaintiff was personally served on April 14, 2026, and filed his Answer, Affirmative Defenses, and Counterclaim on April 15, 2026.
 3. Counsel for Plaintiff/CounterDefendant, Aldrich Legal Services, PLLC, was served with the Counterclaim through electronic transmission pursuant to MCR 2.107(G) on or about April 15, 2026 through April 17, 2026.
 4. Under MCR 2.108(A)(4), Plaintiff/CounterDefendant's response to the Counterclaim was due within twenty-one (21) days of service. Both parties agree that the response deadline was May 6, 2026. (See Motion to Set Aside ¶ 4.)
 5. No response to the Counterclaim was filed on or before May 6, 2026.
 6. No response to the Counterclaim was filed between May 7, 2026 and May 11, 2026.
 7. On May 12, 2026, six days after the response deadline elapsed, Defendant/CounterPlaintiff filed a Request for Default and Default Judgment by the Clerk pursuant to MCR 2.603(A). The Clerk of this Court entered default the same day.
 8. Also on May 12, 2026, Defendant/CounterPlaintiff filed a Motion for Default Judgment on the Counterclaim pursuant to MCR 2.603(B)(3), supported by a notarized Affidavit, Index of Exhibits, attached Exhibits, an Itemized Cost Bill, and a Proposed Order.
 9. On May 13, 2026, more than twenty-four hours after Defendant/CounterPlaintiff's Motion for Default Judgment was on file, Plaintiff/CounterDefendant filed the Motion to Set Aside, together with a proposed Answer to Counterclaim and Answers to Defendant's First Set of Requests for Admissions to Plaintiff.
 10. The Motion to Set Aside is the procedural posture before this Court today.
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II. THE MOTION TO SET ASIDE FAILS ON ITS FACE FOR LACK OF VERIFICATION

A. The Motion Contains No Verification of Any Kind

The Motion to Set Aside bears the heading "PLAINTIFF/COUNTER-DEFENDANT'S VERIFIED MOTION TO SET ASIDE DEFAULT OF COUNTERCLAIM." That heading is, on the face of the document, inaccurate.

The Motion contains no oath, no affirmation, no sworn statement, and no signed declaration under penalty of perjury. The Motion is unaccompanied by any affidavit. The Motion is signed only by attorney Lisa R. Baker on behalf of Aldrich Legal Services, PLLC.

Counsel's signature on a pleading is a signature under MCR 1.109(E). Signature under MCR 1.109(E) is a procedurally distinct act from verification under MCR 1.109(D)(3). MCR 1.109(D)(3) provides that, where verification is required, the document must be confirmed by oath or affirmation of the party or other signer, or by a signed declaration that states substantially: "I declare under the penalties of perjury that this [document] has been examined by me and that its contents are true to the best of my information, knowledge, and belief." No such confirmation or declaration appears anywhere in the Motion to Set Aside or in any attachment.

B. The Verification Requirement Is a Condition Precedent Under MCR 3.210(B)(3)

MCR 3.210(B)(3) is the rule under which Plaintiff/CounterDefendant moves. The rule provides, in pertinent part:

A motion to set aside a default, except when grounded on lack of jurisdiction over the defendant

or subject matter, **shall be granted only upon verified motion of the defaulted party showing good cause.**

(emphasis added).

The phrase "shall be granted only upon" establishes the verified motion as a condition precedent to the Court's authority to grant relief. The rule does not vest the Court with discretion to grant an unverified motion. Where a court rule sets forth a mandatory procedural requirement in unambiguous terms, that requirement is binding on the Court, the litigants, and counsel. See MCR 1.105 (rules of civil procedure are to be construed to secure simplicity in procedure and fairness in administration).

Because the Motion to Set Aside contains no verification under MCR 1.109(D)(3), the condition precedent to relief under MCR 3.210(B)(3) is not satisfied. The Court need not, and should not, reach any other issue.

C. MCR 2.603(D)(1) Requires the Same Result

In her Brief in Support, Plaintiff/CounterDefendant suggests that the standards of MCR 2.603(D)(1) may be applied to her motion (citing *Koy v. Koy*, 274 Mich App 653 (2007)). Counsel's invocation of this alternative rule does not assist Plaintiff/CounterDefendant. MCR 2.603(D)(1) provides, in pertinent part:

*A motion to set aside a default or a default judgment, except when grounded on lack of jurisdiction over the defendant, **shall be granted only if good cause is shown and a statement of facts showing a meritorious defense, verified in the manner prescribed by MCR 1.109(D)(3), is filed.***

(emphasis added). MCR 2.603(D)(1) thus requires a statement of facts verified in the manner prescribed by MCR 1.109(D)(3). Plaintiff/CounterDefendant has not filed any such statement. The proposed Answer to Counterclaim is a pleading, not a verified statement of facts; it is signed only by counsel and contains no verification under MCR 1.109(D)(3).

Whether the Court applies MCR 3.210(B)(3) or MCR 2.603(D)(1), the result is the same: Plaintiff/CounterDefendant has not provided the verified showing that either rule requires. The Motion to Set Aside must be denied on this basis alone.

D. In the Alternative, MCR 3.210(B)(3) Requires Verification by the Defaulted Party Herself

Even if some form of verification by counsel were sufficient under MCR 1.109(D)(3) in some contexts (which Defendant/CounterPlaintiff does not concede), MCR 3.210(B)(3)'s additional requirement that the verified motion be that "of the defaulted party" places the verification obligation on the party herself rather than her counsel. Plaintiff/CounterDefendant Adrienne Marjorie Rockenhaus has not signed, sworn to, or affirmed any portion of the Motion to Set Aside. No accompanying affidavit from Plaintiff/CounterDefendant has been filed. This alternative ground for denial reinforces, but is not necessary to, the relief Defendant/CounterPlaintiff seeks.

III. EVEN IF VERIFIED, THE MOTION WOULD FAIL FOR LACK OF GOOD CAUSE

If the Court reaches the merits of the good-cause showing, the Motion still fails.

A. The Saffian Standard

The controlling authority is *Saffian v. Simmons*, 477 Mich 8, 727 NW2d 132 (2007), affirming 267 Mich App 297, 704 NW2d 722 (2005). Under *Saffian*, good cause to set aside a default may be shown by:

- (1) A substantial procedural defect or irregularity, or*
- (2) A reasonable excuse for failure to comply with the requirements that created the default.*

Plaintiff/CounterDefendant does not allege any procedural defect or irregularity in the entry of default. She

alleges only reasonable excuse. (See Motion to Set Aside ¶¶ 14, 15; Brief in Support at 3.)

B. The Motion's Own Factual Narrative Defeats Reasonable Excuse

The "reasonable excuse" Plaintiff/CounterDefendant offers is that counsel expected to be withdrawn from representation on May 12, 2026 (the original hearing date on counsel's Motion to Withdraw). The Motion states at paragraphs 14 and 15:

14. *There is good cause for not filing an Answer the [sic] Counterclaim, because Aldrich Legal Service believed that it would be withdrawn from representation on May 12, 2026, before the Answer to Counterclaim was due.*

15. *Good cause exists as it was reasonable for Aldrich Legal Services to rely on being granted an Order to Withdraw on the May 12, 2026, hearing date.*

The Motion concedes, however, at paragraph 4:

4. *Plaintiff/CounterDefendant's Answer to Counterclaim was due on May 6, 2026.*

The May 6 deadline and the May 12 expected withdrawal date cannot be reconciled. **The Answer to Counterclaim was due six days before the date on which counsel expected to be withdrawn.** Even on Plaintiff/CounterDefendant's own assumptions about the original hearing schedule, the Answer deadline would have elapsed during counsel's continuing representation.

The Motion's factual premise that counsel expected to be withdrawn before the Answer was due is therefore wrong as a matter of arithmetic. Counsel's expectations about a May 12 withdrawal could not, and did not, cause counsel to miss a May 6 deadline.

C. Counsel Made a Voluntary Choice Not to File

The Saffian standard requires that the excuse render the default involuntary rather than voluntary. Counsel's decision not to file an Answer on or before May 6, 2026 was voluntary. Aldrich Legal Services remained counsel of record for Plaintiff/CounterDefendant on May 6, 2026, on every day between May 6 and May 12, 2026, and as of the date of this Response. No order has issued releasing Aldrich Legal Services from representation. On May 6, 2026, Aldrich Legal Services had an obligation to file or to seek an extension. It did neither.

Counsel of record's duty to continue representation until court-granted withdrawal is established by MRPC 1.16(c):

When ordered to do so by a tribunal, a lawyer shall continue representation notwithstanding good cause for terminating the representation.

Although no order to continue representation had issued (counsel had not yet been permitted to withdraw), the principle is the same: counsel of record remains responsible for the client's case until court-ordered release. A lawyer who has filed a motion to withdraw is not thereby relieved of the obligation to meet substantive deadlines while the motion to withdraw is pending.

D. The Communication Breakdown Asserted in Paragraph 16 Is Not Good Cause

The Motion states at paragraph 16:

On April 24, 2026, Plaintiff/CounterDefendant instructed Aldrich Legal Services not to continue with this case, and that Plaintiff/CounterDefendant would not read or respond to emails from Aldrich Legal Services.

This assertion, made by counsel without supporting verification from the party, is offered as a fact, but is

itself unsworn and uncorroborated. Taken on its face, it is a candid statement that on April 24, 2026, Plaintiff/CounterDefendant ceased communicating with her own counsel. The Answer to Counterclaim deadline was twelve days later, on May 6, 2026. During that twelve-day period, Aldrich Legal Services was counsel of record, was obligated under MRPC 1.16(c) to continue representation, and could have filed an Answer, sought an extension, sought emergency withdrawal, or moved for any other appropriate relief. Counsel chose to do none of those things.

The breakdown of attorney-client communication is a matter between counsel and her client. It cannot, under any version of the Saffian standard, constitute good cause to vacate a default obtained by an opposing party who complied with all applicable procedural rules.

E. The Reassignment to Hon. Goodson Did Not Affect the Answer Deadline

Plaintiff/CounterDefendant's Brief in Support emphasizes (at 3-4) that the Order Reassigning Case to Hon. Goodson was "unforeseeable." The reassignment of judges has no bearing on the Answer deadline. The Answer deadline arose under MCR 2.108(A)(4), which provides twenty-one days for response. The reassignment did not extend, modify, or affect that deadline in any way. The reassignment also occurred before the May 6 deadline elapsed and could not have prevented counsel from filing during the remaining time before that deadline.

IV. NO MERITORIOUS DEFENSE HAS BEEN STATED

A. The Standard for Meritorious Defense

If the Court is applying MCR 2.603(D)(1) through the Koy v. Koy analysis, a separate showing of meritorious defense is required. Even under the MCR 3.210(B)(3) framework, the existence of a meritorious defense is a relevant consideration within the "good cause" analysis. Plaintiff/CounterDefendant offers her proposed Answer to Counterclaim as the predicate for meritorious defense. The proposed Answer does not satisfy the standard.

B. The Proposed Answer Violates MCR 2.111(C)(1)

MCR 2.111(C)(1) requires that a responsive pleading state, with respect to each allegation:

- (1) an explicit admission or denial; or*
- (2) a denial as the pleader has knowledge or information sufficient to form a belief.*

The proposed Answer to Counterclaim does not contain a single explicit admission. Every substantive paragraph (paragraphs 24 through 62) uses one of two formulations:

- a. "Plaintiff/CounterDefendant can neither admit nor deny the allegations contained in paragraph [X] for lack of sufficient information available, and leaves Defendant/CounterPlaintiff to his proofs"; or
- b. "Plaintiff/CounterDefendant can neither admit nor deny paragraph [X] as it does not contain allegations that can be admitted or denied but is a narrative of Defendant/CounterPlaintiff's [background/mental state]."

Many of the allegations to which Plaintiff/CounterDefendant has pled "lack of sufficient information" concern her own conduct, statements, and decisions, including without limitation:

Counterclaim Paragraph	Subject Matter
34-43	Plaintiff/CounterDefendant's own personal protection order petition
44	Plaintiff/CounterDefendant's own access to and use of Defendant/CounterPlaintiff's private records and communications
46-48	Plaintiff/CounterDefendant's own statements to law enforcement
49-50	Plaintiff/CounterDefendant's own handling of Defendant/CounterPlaintiff's personal

property
51-54 Plaintiff/CounterDefendant's own management of Cannabytes, LLC
57-58, 60, 62 Plaintiff/CounterDefendant's own communications and conduct

A party cannot plausibly plead "lack of sufficient information" concerning her own conduct, her own statements, or her own decisions. Such a response is not a proper denial under MCR 2.111(C)(1) and (E)(2). MCR 2.111(E)(2) requires that an averment of lack of knowledge or information be made in good faith, and is properly invoked only when the pleader genuinely lacks the requisite information.

C. The Effect of Improper Denials Under MCR 2.111(D)

MCR 2.111(D) provides:

Allegations in a pleading that requires a responsive pleading, other than allegations of the amount of damages or the value of property, are admitted if not denied in the responsive pleading.

By failing to provide proper denials under MCR 2.111(C)(1) for allegations within her own personal knowledge, Plaintiff/CounterDefendant has functionally admitted those allegations. A pleading that operates as a series of admissions cannot constitute a meritorious defense to those admitted allegations.

D. No Affirmative Defenses

Beyond the deficient denials, the proposed Answer raises no affirmative defenses. Under MCR 2.111(F)(3), affirmative defenses must be raised in the responsive pleading or are waived. Plaintiff/CounterDefendant raises no affirmative defenses (e.g., statute of limitations, laches, unclean hands, estoppel, accord and satisfaction, failure to state a claim, immunity, or any other recognized defense). The proposed Answer therefore fails to introduce any new substantive matter for the Court to consider, even apart from the deficient denials.

E. The Same Pattern Appears in Plaintiff/CounterDefendant's Contemporaneously-Served Discovery Responses

Defendant/CounterPlaintiff served his First Set of Requests for Admissions to Plaintiff on Plaintiff/CounterDefendant's counsel of record on April 15, 2026, by first-class United States Mail (USPS Priority Mail tracking number 9505 5066 1751 6105 2324 81, with delivery confirmation recorded April 17, 2026) and contemporaneously by electronic mail pursuant to MCR 2.107(G). Plaintiff/CounterDefendant's responses were due twenty-eight days after service under MCR 2.312(B)(1). On May 13, 2026, the twenty-eighth day after service, and contemporaneously with the Motion to Set Aside and the proposed Answer, Plaintiff/CounterDefendant served her Answers to Defendant's First Set of Requests for Admissions to Plaintiff. The form of those Answers is materially identical to the form of the proposed Answer. Every substantive response to fifty-three Requests for Admissions uses the same formula:

"Plaintiff cannot truthfully admit nor deny for lack of information or knowledge. Plaintiff has made reasonable inquiry and the information known or readily obtainable is insufficient at this time to enable Plaintiff to admit or deny the request for admission."

This formula is repeated as the entire substantive answer to Requests for Admissions concerning, among other things, Plaintiff/CounterDefendant's own visits to FCI Milan; her own letters, packages, and TRULINCS messages to Defendant/CounterPlaintiff during his federal incarceration; her own sworn declarations filed in the United States District Court for the Eastern District of Michigan identifying herself as Defendant/CounterPlaintiff's wife; her own published content on rockenhaus.com and on her social media accounts; her own management of her bank account receiving Defendant/CounterPlaintiff's federal disability benefits; her own filing status on her federal income tax returns; the Social Security Administration's demand letter to her as Representative Payee; her own written communications to Defendant/CounterPlaintiff's

federal appellate counsel; her own statements to the Redford Township Police Department; her own retention of Defendant/CounterPlaintiff's identification documents and electronic devices; her own control of internet domains; and her own sworn statements made in her own Petition for Personal Protection Order.

The recurring pattern across both the proposed Answer and the discovery responses is the same. Plaintiff/CounterDefendant, through counsel, has chosen evasion as her engagement posture rather than the substantive admission, denial, or qualification that the Michigan Court Rules require. Setting aside the default would not produce litigated factual or legal issues for the Court to adjudicate; it would extend the time during which Plaintiff/CounterDefendant continues to refuse engagement with the substance of the matters before the Court. The discovery responses confirm what the proposed Answer suggests: there is no meritorious defense waiting to be heard.

F. Conclusion on Meritorious Defense

The proposed Answer to Counterclaim is not a meritorious defense. It is a placeholder. Permitting Plaintiff/CounterDefendant to substitute that placeholder for the default would extend this litigation without producing any contested factual or legal issue that the Court would need to adjudicate. It would prejudice Defendant/CounterPlaintiff while serving no genuine purpose for either the Court or the parties.

V. THE MANIFEST INJUSTICE ARGUMENTS FAIL

Plaintiff/CounterDefendant's Brief in Support (at 4-5) advances three "manifest injustice" arguments. Each fails on the facts or the law.

A. The Verified Financial Information Form Has Been Exchanged

The Motion to Set Aside at paragraph 23, and the Brief in Support at 4, both assert that "neither party has exchanged the required Domestic Relations Verified Information Form (DRVFIF)." This assertion is incorrect. Plaintiff/CounterDefendant filed her Verified Financial Information Form on or about April 22, 2026 with her original Complaint package. Defendant/CounterPlaintiff has reviewed that filing and has noted material omissions, including without limitation the omission of Plaintiff/CounterDefendant's frequent distributions from a trust established by her late mother. The accuracy of Plaintiff/CounterDefendant's existing VFIF is a matter that may be addressed at the default judgment hearing or in supplemental proceedings; it is not a basis to set aside the default.

B. MCL 552.9f Does Not Bar Default Or Default Judgment

The Motion to Set Aside at paragraph 22, and the Brief in Support at 4, invoke MCL 552.9f as a bar to entry of default or default judgment. MCL 552.9f provides:

No proofs or testimony shall be taken in any case for divorce until the expiration of 60 days from the time of filing the bill of complaint, except where the cause for divorce is desertion, or when the testimony is taken conditionally for the purpose of perpetuating such testimony.

MCL 552.9f addresses the timing of proofs or testimony. It does not bar entry of default; default is a procedural step under MCR 2.603(A) that does not involve proofs or testimony. It does not bar entry of default judgment on the predicate issue of liability. The statutory 60-day waiting period from the filing of the Complaint on April 9, 2026 expires on June 8, 2026. The earliest legally permissible default judgment hearing under MCR 2.603(B)(1)(b) is May 19, 2026, but Defendant/CounterPlaintiff is content for the Court to calendar the default judgment hearing on or after June 8, 2026 if the Court considers it appropriate to do so to satisfy the spirit of MCL 552.9f. The statute is not a basis to vacate the default.

C. The Failure to Identify Assets Is Plaintiff/CounterDefendant's Own Conduct

The Brief in Support argues (at 4-5) that "there are marital assets and debts at issue which have not yet been fully identified," implying that the Court should set aside the default to permit further discovery and disclosure. This argument inverts the procedural posture. Plaintiff/CounterDefendant controls disclosure of

her own assets and her own debts. She filed her VFIF on April 22, 2026 and chose what to include and what to omit. Her continuing non-disclosure of trust distributions and other material financial information is a matter within her exclusive control and is the subject of Defendant/CounterPlaintiff's pending Counterclaim and the Affidavit accompanying his Motion for Default Judgment. Setting aside the default would reward Plaintiff/CounterDefendant's non-disclosure rather than remedying it.

VI. THE PROPER PROCEDURAL COURSE IS DENIAL AND PROGRESSION TO THE DEFAULT JUDGMENT HEARING

Defendant/CounterPlaintiff's Motion for Default Judgment, filed May 12, 2026, has been on the docket for more than twenty-four hours longer than Plaintiff/CounterDefendant's Motion to Set Aside. The Motion for Default Judgment is supported by a notarized Affidavit, multiple exhibits, an Itemized Cost Bill, and a Proposed Order. The Motion for Default Judgment is procedurally ripe under MCR 2.603(B)(3), with the earliest permissible hearing date of May 19, 2026 under MCR 2.603(B)(1)(b). Plaintiff/CounterDefendant has not filed any response to the Motion for Default Judgment.

The proper procedural course is for this Court to:

1. Deny the Motion to Set Aside;
2. Calendar Defendant/CounterPlaintiff's Motion for Default Judgment for hearing at the Court's earliest convenience on or after May 19, 2026, with appropriate sensitivity to MCL 552.9f's sixty-day waiting period (which expires June 8, 2026); and
3. Proceed to adjudication of the Counterclaim on the substantive record now before the Court.

VII. RELIEF REQUESTED

WHEREFORE, Defendant/CounterPlaintiff Conrad Alan Rockenhaus respectfully requests that this Honorable Court:

- A. Deny Plaintiff/CounterDefendant's Motion to Set Aside Default of Counterclaim in its entirety;
- B. Affirm the May 12, 2026 entry of default by the Clerk pursuant to MCR 2.603(A);
- C. Calendar Defendant/CounterPlaintiff's Motion for Default Judgment, filed May 12, 2026, for hearing at the Court's earliest convenience consistent with MCR 2.603(B)(1)(b) and, if the Court considers it appropriate, with the sixty-day period set forth in MCL 552.9f; and
- D. Grant any other and further relief the Court deems just and equitable.

Respectfully submitted,
/s/ Conrad A. Rockenhaus
Conrad Alan Rockenhaus, Defendant/CounterPlaintiff Pro Se
1690 Brookfield Drive
Ann Arbor, Michigan 48103
(254) 340-7910
conrad@rockenhaus.net
Date: May 14, 2026

CERTIFICATE OF SERVICE

I, Conrad Alan Rockenhaus, hereby certify that on May 14, 2026, I served a true and correct copy of the foregoing Defendant/CounterPlaintiff's Response in Opposition to Plaintiff/CounterDefendant's Motion to Set Aside Default of Counterclaim upon counsel of record for Plaintiff/CounterDefendant by two independent

modes: (i) electronic transmission pursuant to MCR 2.107(G) to the electronic mail addresses listed below, and (ii) First Class U.S. Mail to the firm's office of record as a courtesy.

Service by Electronic Transmission:

- Lisa Baker, Esq. (P82555), Aldrich Legal Services, PLLC, at lisabaker@aldrichlegalservices.com (counsel of record for Plaintiff/CounterDefendant)
- Kristen Sinkiewicz, Paralegal, Aldrich Legal Services, PLLC, at kris@aldrichlegalservices.com (carbon copy, paralegal at firm of record)

Service by First Class U.S. Mail (Courtesy Copy):

- Aldrich Legal Services, PLLC, Attn: Lisa Baker, Esq. (P82555), 276 South Union Street, Plymouth, MI 48170 (counsel of record for Plaintiff/CounterDefendant)

Aldrich Legal Services, PLLC remains counsel of record for Plaintiff/CounterDefendant in this matter, and its appearance has not been withdrawn as of the date of this Certificate of Service. Service on counsel of record is proper under MCR 2.107(B)(1). Service by First Class U.S. Mail is complete on mailing under MCR 2.107(C)(3).

I declare under the penalties of perjury that this Certificate of Service has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

Dated: May 14, 2026

/s/ Conrad A. Rockenhaus

Conrad Alan Rockenhaus

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